

CHAPTER 8 - ACCOUNTING & PREPAYMENTS

I. INTRODUCTION

This chapter sets forth the standard accounting procedures that govern magistrate financial transactions. Cash bonds, traffic and non-traffic prepayments, and civil fees comprise the three major types of accounting activity.

II. STATUTES GOVERNING ACCOUNTING PROCEDURES

[Virginia Code § 30-138](#) requires that certain state officials, including chief magistrates, report to the [Auditor of Public Accounts](#) and the Superintendent of the [Virginia Department of the State Police](#) any circumstances suggesting a reasonable possibility of fraudulent transactions. The willful failure to make this report constitutes a Class 3 misdemeanor.

The statute further requires that all personnel cooperate in any audit or investigation. Chief magistrates must ensure that all personnel cooperate in audits and investigations. Chief magistrates are required to advise the Office of the Executive Secretary on the progress and findings of the audit or investigation.

[Virginia Code § 19.2-47.1](#) provides that all funds paid to and collected by magistrates must be promptly paid to the appropriate court clerk, commissioner in chancery, department of the Commonwealth, federal agency or as prescribed by statutes.

[Virginia Code § 16.1-69.48:2](#) sets forth the chargeable fees for various civil cases. These fees are also listed in the “Fees and Prepayment Schedules” appendix in this manual.

Although [Va. Code § 17.1-271](#) deals specifically with circuit court clerks, magistrates must observe the procedures set forth in this statute. The statute states:

Whenever any clerk of a court receives or collects any money for or on account of the Commonwealth or any county, city, town or person, he shall, within a reasonable time, deposit the same in such bank or banks selected by him to the credit of an official account, and in the event of the failure or insolvency of such bank, the clerk shall not be responsible for any loss of funds resulting from such failure or insolvency.

Any such officer who deposits any such money in his personal account, knowingly intermingles any of the same with his personal funds, or otherwise violates any of the provisions of this section shall be deemed guilty of a misdemeanor. However, prosecution hereunder shall not preclude criminal prosecution under any other section of this Code.

[Virginia Code § 16.1-69.33](#) allows the Committee on District Courts to authorize reimbursement to a judge or a magistrate for the loss of property or money from a district court or magistrate’s office by reason of robbery or burglary upon a finding that the judge

or magistrate was not negligent in the performance of his or her duties. The statute limits reimbursement to \$1,000.00 per claim.

[Virginia Code § 16.1-69.40:3](#) absolves clerks, judge, and by inference, magistrates, from personal liability for loss of funds if negligence, failure to exercise appropriate supervision, or intentional misconduct does not cause the shortage of funds. If a shortage occurs, see the section titled “Guidelines For Claims Resulting From A Shortage Of Money: Action Required.”

[Virginia Code § 16.1-69.56](#) authorizes the Supreme Court of Virginia to determine the retention periods for financial and administrative records of the district courts and magistrates.

[Virginia Code § 16.1-69.57](#) requires that magistrates destroy records retained in the office of the magistrate upon expiration of the retention periods as set forth in [Va. Code § 16.1-69.56](#).

[Virginia Code § 19.2-48](#) requires the [Auditor of Public Accounts](#) to audit the financial records of magistrates together with the records of the district courts.

[Virginia Code § 42.1-88](#) requires a magistrate to deliver all records to his or her successor, or, where no successor exists, the [Library of Virginia](#).

III. MAGISTRATE CHECKING ACCOUNTS

Effective November 1, 2013, chief magistrates have two options for magistrate checking accounts. Chief magistrates may choose only one option for their district. However, in limited circumstances, a combination of the two will be permissible. When a chief magistrate finds that, due to extenuating circumstances, that a combination of the two is necessary, the chief magistrate must seek the approval of their regional magistrate supervisor and the director of Magistrate Services.

The first option: one checking account per district. The chief magistrate may choose this option only if there is a bank available with branch offices located near each magistrate’s office in the district.

The second option: one checking account per office. The chief magistrate must choose this option when no bank is available with branch offices located near each magistrate’s office in the district.

a. Chief Magistrate Procedures For One Checking Account Per District

- i. The chief magistrate opens a checking account for each magistrate’s office in his or her district as a public funds account with a qualified depository using the magistrate system tax identification number. No one may use this tax identification number for any other purpose.

- ii. The chief magistrate establishes the checking account in the name of the district listing his or her office as the address on the account. The chief magistrate also has checks printed according to the following example:

Office of the Magistrate
Twenty-Seventh Judicial District 1 East Main Street
Christiansburg, Virginia 24073-0321

The chief magistrate has the bank overprint the checks with a time of presentation statement that reads “**VOID AFTER 15 DAYS.**” In lieu of the overprinting, the chief magistrate may obtain an ink stamp with this message.

- iii. The chief magistrate and regional magistrate supervisor list themselves as the primary signatories and all magistrates expected to write checks on the account within the district as authorized second signatories. Any magistrate not listed as a second signatory on the account may not conduct any business for that account except for making deposits. For offices where the chief magistrate usually writes the checks to the courts; there must be at least one other magistrate listed and tasked with the responsibility of writing the checks when the chief magistrate is unavailable. The chief magistrate and regional magistrate supervisor list themselves as the only persons authorized to make changes to the account. Both the primary and second signatories are able to make deposits and draw checks. Only banks that permit the adding and removing of second signatories without the closing of the account should be used.
- iv. The chief magistrate orders checks for the account. Once the chief magistrate receives the checks, he or she may either (1) distribute a designated block of checks to each magistrate or (2) distribute a designated block of checks to each office within the district.

Example (1): The chief magistrate establishes a checking account for the Montgomery County Magistrate’s Office. The check numbers range from 001 to 150. There are six magistrates assigned to the Montgomery County Office. The chief magistrate assigns Magistrate Garnand checks 001-025, checks 026-050 to Magistrate Williams, checks 051-075 to Magistrate Gordon, etc. The chief magistrate assigns herself a series of checks from the checking account of the magistrate’s office closest to his office.

Example (2): The chief magistrate establishes a checking account for the Thirty-First Judicial District. The check numbers range from 001 to 400. There are two offices in the Thirty-First Judicial District. The chief magistrate assigns the Prince William/Manassas office checks 001-200 and the Woodbridge office checks 201 to 400. The checks are maintained at a central location within the office that is accessible to any magistrate from that district.

Magistrates who work in various offices within a district will use checks from the office in which they issue the receipt since all offices use the same checking account.

- a. The chief magistrate creates a spreadsheet listing the check numbers assigned to office or magistrate.
 - b. If checks are distributed in a designated block of checks to each magistrate, when a magistrate vacates his or her position, the chief magistrate must account for all unused checks assigned to that magistrate. The chief magistrate will re-assign the unused checks to the magistrate filling the vacant position. If the vacant position is not filled, the chief magistrate will then re-assign the unused checks to another magistrate within the office.
- The chief magistrate establishes a computer check registry in the district for magistrates to enter all cash transactions. The chief magistrate establishes this computer check registry on a shared drive which all magistrates within the district may access. The chief magistrate will create a desktop icon for the check registry.
 - The applicable retention rules apply to the computer check registry. When the [Auditor of Public Accounts](#) audits the district records, the chief magistrate will generate and supply a copy of the check registry to the auditors.
 - The chief magistrate establishes and maintains a financial binder for all accounting records. The financial binder contains the eMagistrate receipts, the validated deposit slips, and the clerk receipts for each magistrate assigned to the district. The chief magistrate files the receipts sequentially by date and time issued. It also contains the monthly bank statements and reconciliations. Each financial binder has twelve individual sections – one section per month. The chief magistrate will maintain this financial binder in his or her office.
 - The chief magistrate either completes the monthly bank reconciliation for the district bank account or may designate one magistrate to reconcile the statement.

NOTE:

Because a chief magistrate has the option to delegate this task to a magistrate and it is not a mandated policy, their regional magistrate supervisor must approve the delegation of this duty.

The chief magistrate is ultimately responsible to ensure that the designated magistrate has accurately completed this task. This requires the chief magistrate to check the monthly reconciliation to ensure that the reconciliation has been completed and is accurate.

The chief magistrate should negotiate with the bank to have bank statements issued at the beginning of each month with the statements to include bank transactions from the first of each month until the last day of the month. This allows for the bank statements to coincide with the monthly summary report. If the bank is unable to accommodate a statement period based on the regular calendar month, run the eMagistrate receipt summary report to coincide with the bank statement.

- The chief magistrate either audits monthly the district's financial binder containing all accounting records or designates one magistrate to audit the records.

NOTE:

Because a chief magistrate has the option to delegate this task to a magistrate and it is not a mandated policy, their regional magistrate supervisor must approve the delegation of this duty.

The chief magistrate is ultimately responsible to ensure that the designated magistrate has accurately completed this task. If the chief magistrate designates one magistrate per office to audit monthly the financial binder, the chief magistrate must audit accounting records of all offices within his or her district on a quarterly basis. If, however, the APA cites a deficiency in a magistrate audit for any locality in the district, the chief magistrate must audit the records every two months. The chief magistrate reports the internal audit results to his or her regional magistrate supervisor upon conclusion of each bi-monthly or quarterly review.

b. Chief Magistrate Procedures For One Checking Account Per Office

- i. The chief magistrate opens a checking account for each magistrate's office in his or her district as a public funds account with a qualified depository using the magistrate system tax identification number. No one may use this tax identification number for any other purpose.
- ii. The chief magistrate establishes the checking account in the name of the magistrate's office, listing the magistrate's office as the address on the account. The chief magistrate orders checks printed according to the following example:

Office of the Magistrate for Montgomery County
1 East Main Street
Christiansburg, Virginia 24073-0321

The chief magistrate has the bank overprint the checks with a time of presentation statement that reads “**VOID AFTER 15 DAYS.**” In lieu of the overprinting, the chief magistrate may obtain an ink stamp with this message.

- iii. The chief magistrate and regional magistrate supervisor list themselves as the primary signatories and all magistrates expected to write checks on the account within the office as authorized second signatories. Any magistrate not listed as a second signatory on the account may not conduct any business for that account except for making deposits. For offices where the chief magistrate usually writes the checks to the courts; there must be at least one other magistrate listed and tasked with the responsibility of writing the checks when the chief magistrate is unavailable. The chief magistrate and regional magistrate supervisor list themselves as the only persons authorized to make changes to the account. Both the primary and second signatories are able to make deposits and draw checks. Only banks that permit the adding and removing of second signatories without the closing of the account should be used.
- iv. The chief magistrate orders checks for the account. Once the chief magistrate receives the printed checks, he allocates a series of checks to each magistrate.

Example: The chief magistrate establishes a checking account for the Montgomery County Magistrate’s Office. The check numbers range from 001 to 150. There are six magistrates assigned to the Montgomery County Office. The chief magistrate assigns Magistrate Garnand checks 001-025, checks 026-050 to Magistrate Williams, checks 051-075 to Magistrate Gordon, etc. The chief magistrate assigns herself a series of checks from the checking account of the magistrate’s office closest to his office.

- a. The chief magistrate creates a spreadsheet listing the check numbers assigned to each magistrate.
- b. When a magistrate vacates his or her position, the chief magistrate must account for all unused checks assigned to that magistrate. The chief magistrate will re-assign the unused checks to the magistrate filling the vacant position. If the vacant position is not filled, the chief magistrate will then re-assign the unused checks to another magistrate within the office.
 - The chief magistrate establishes a computer check registry in each office for magistrates to enter all cash transactions. The chief magistrate establishes this computer check registry on one computer in each office which all magistrates within the office may access. The chief magistrate will create a desktop icon for the check registry.

- The applicable retention rules apply to the computer check registry. When the [Auditor of Public Accounts](#) audits the office records, the chief magistrate will generate and supply a copy of the check registry to the auditors.
- The chief magistrate establishes a financial binder in each office for all accounting records. The financial binder contains the eMagistrate receipts, the validated deposit receipts and the clerk receipts for each magistrate primarily assigned to such office. It also contains the monthly bank statements and reconciliations. Each financial binder has twelve individual sections – one section per month. Magistrates file their eMagistrate receipts, deposit receipts and clerk receipts in the financial binder. eMagistrate receipts are filed sequentially by date and time issued.
- The chief magistrate either completes the monthly bank reconciliation for all offices or designates one magistrate per office to reconcile the statements.

NOTE:

Because a chief magistrate has the option to delegate this task to a magistrate and it is not a mandated policy, their regional magistrate supervisor must approve the delegation of this duty.

The chief magistrate is ultimately responsible to ensure that the designated magistrate has accurately completed this task. This requires the chief magistrate to check the monthly reconciliation to ensure that the reconciliation has been completed and is accurate.

The chief magistrate should negotiate with the bank to have bank statements issued at the beginning of each month with the statements to include bank transactions from the first of each month until the last day of the month. This allows for the bank statements to coincide with the monthly summary report. If the bank is unable to accommodate a statement period based on the regular calendar month, run the eMagistrate receipt summary report to coincide with the bank statement.

- The chief magistrate either audits monthly each office's financial binder containing all accounting records or designates one magistrate per office to audit the records.

NOTE:

Because a chief magistrate has the option to delegate this task to a magistrate and it is not a mandated policy, their regional magistrate supervisor must approve the delegation of this duty.

The chief magistrate is ultimately responsible to ensure that the designated magistrate has accurately completed this task. If the chief magistrate designates one magistrate per office to audit monthly the financial binder, the chief magistrate must audit accounting records of all offices within his or her district on a quarterly basis. If, however, the APA cites a deficiency in a magistrate audit for any locality in the district, the chief magistrate must audit the records every two months. The chief magistrate reports the internal audit results to his or her regional magistrate supervisor upon conclusion of each bi-monthly or quarterly review.

- The chief magistrate will also:
 - c. generate monthly receipt summary reports from the eMagistrate system
 - d. submit the yearly financial statement to the [Auditor of Public Accounts](#).

IV. MAGISTRATE ACCOUNTING PROCEDURES FOR CHECKING ACCOUNTS

Since November 1, 2013, all magistrates have issued checks from, and made deposits to, the newly established checking accounts. Magistrates continued to write checks on their individual magistrate checking accounts through October 31, 2013. Thereafter, once all outstanding checks cleared the magistrate's individual checking account, he or she should have closed that account. The magistrate must have requested that the bank provide written verification of the closure of the account. The retention rules noted in this accounting chapter of the *MAGISTRATE MANUAL* apply to closed accounts as well as to the district account.

a. Procedures For One Checking Account Per District

When processing criminal cash bonds, prepayments, civil filing fees and civil cash bonds, magistrates must:

1. Generate receipt from either:
 - a. the eMagistrate system if the system is operational, or
 - b. the DC-7, RECEIPT book if the eMagistrate system is inoperable.
 - Generate an eMagistrate receipt when the system is again operational.
 - Note on the eMagistrate receipt that the original receipt was issued from the DC-7, RECEIPT book and put the DC-7 receipt number of the eMagistrate generated receipt.
2. Deposit funds into the district checking account using a deposit slip.

- a. For deposits made during normal banking hours, obtain a deposit receipt from the teller.
 - b. When using a night-drop deposit, enclose a self-addressed stamped envelope and request the bank to mail the deposit receipt.
 - If a counterfeit bill is detected when the deposit is attempted, the magistrate should deposit the remaining cash and notify the court and his or her chief magistrate. The magistrate should not deposit personal funds to cover the balance. Doing so could unjustly enrich the surety.
3. Write a check from the district checking account or from the designated block of checks to the appropriate court. (Where the district has a master checkbook in each office, magistrates who process cash transactions while conducting hearings in another district **within** the region will issue checks from their home district's checking account.) Any magistrate not listed as a second signatory on the account may not conduct any business for that account except for making deposits.
4. Access the check registry file on the shared drive through an icon found on the computer's desktop. (Each magistrate may access this file from any magistrate's office computer within the district.)
5. Enter the appropriate information for the deposit and check into the check registry file. Make both entries at the same time so that they appear together
6. Save and close the file after entering the information. (Magistrates who process cash transactions while conducting hearings in another district within the region will enter the information for the deposits and checks into the shared drive check registry file upon returning to the magistrate's home district.)
7. Mail or deliver the court documents and check to the appropriate court.
8. Once the receipt is received from the court, the magistrate should mail or deliver the magistrate copy of the eMagistrate receipt, the validated deposit receipt and the court receipt to the chief magistrate. The chief magistrate will establish a financial binder for the district and maintain the financial binder in his or her office. The chief magistrate files the eMagistrate receipts, the validated bank deposit receipt and the court receipt in the financial binder. Magistrates are not required to maintain an individual financial binder.

9. The chief magistrate will:
 - a. generate monthly receipt summaries from the eMagistrate system;
 - b. receive monthly bank statements and prepare monthly reconciliation reports;
 - c. maintain all financial records for the district checking account; and
 - d. submit the yearly financial statement to the [Auditor of Public Accounts](#).

b. Procedures For One Checking Account Per Office

When processing criminal cash bonds, prepayments, civil filing fees and civil cash bonds, magistrates must:

1. Generate receipt from either:
 - a. the eMagistrate system if the system is operational, or
 - b. the DC-7, RECEIPT book if the eMagistrate system is inoperable.
 - Generate an eMagistrate receipt when the system is again operational.
 - Note on the eMagistrate receipt that the original receipt was issued from the DC-7, RECEIPT book put the DC-7 receipt number of the eMagistrate generated receipt.
2. Deposit funds into the office account using a deposit slip.
 - a. For deposits made during normal banking hours, obtain a deposit receipt from the teller.
 - b. When using a night-drop, enclose a self-addressed stamped envelope and request the bank mail the deposit receipt.
3. Write a check from the assigned series of checks to the appropriate court. Do not write checks assigned to other magistrates. Any magistrate not listed as a second signatory on the account may not conduct any business for that account except for making deposits.
4. Access the check registry file through an icon found on the computer's desktop.
 - a. Enter the appropriate information for the deposit and check into the check registry file. Make both entries at the same time so that they appear together.

- c. Save and close the file after entering the information. (Magistrates who process cash transactions while conducting hearings in another office or district within the region must enter the information for the deposit and check into the office check registry file upon returning to the magistrate's home office.)
5. Mail or deliver the paperwork and check to the appropriate court.
6. File the magistrate copy of the eMagistrate receipt, the validated deposit receipt and the court receipt in the financial binder. The chief magistrate will establish a financial binder in each office for all accounting records. Magistrates are not required to maintain an individual financial binder. The financial binder contains the eMagistrate receipts, the validated deposit receipts and the clerk receipts for each magistrate primarily assigned to such office. It also contains the monthly bank statements and reconciliations. Each financial binder has twelve individual sections – one section per month. eMagistrate receipts for all magistrates appear sequentially by date and time issued.
7. The chief magistrate completes the yearly financial statement each year. Magistrates will no longer complete or submit the yearly financial statement.
8. If the chief magistrate reconciles the bank statement of all office accounts within the district, he or she will:
 - a. generate monthly receipt summaries from the eMagistrate system;
 - b. review monthly bank statements and prepare monthly reconciliation reports; and
 - c. audit monthly the financial binder containing all accounting records.
9. If the chief magistrate designates one magistrate per office to reconcile the bank statement, such magistrate will:
 - a. obtain from the chief magistrate the monthly receipt summaries generated from the eMagistrate system;
 - b. review monthly bank statements and prepare monthly reconciliation reports; and
 - c. audit monthly the financial binder containing all accounting records.

V. PREPARATION OF AUTOMATED RECEIPTS

When magistrates receive cash, money orders or checks, an eMagistrate system generated receipt must be issued. **THE DC-7, RECEIPT BOOK WILL ONLY BE USED WHEN THE SYSTEM IS INOPERABLE.**

a. Automated Receipts For Cash Bonds

If certain conditions are met when issuing a DC-330, [RECOGNIZANCE](#), an automated receipt will print. The information printed on the automated receipt is "pulled" from the information entered on the recognizance form. Therefore, it is imperative that magistrates enter this information correctly. The following must be true: Type of Bond must be **SECURED**, Cash must be **YES**, and an amount must be entered in the **AMOUNT** field. Also, once Cash is set to **YES** – the **EFT** field becomes enabled.

This will allow magistrates to identify if the transaction involves an Electronic Funds Transfer. If this box selects this option, it will be indicated by a check mark on the receipt.

Bond Information	
Type of Bond:	Secured
Cash:	Yes
Other:	
Amount:	10000

When all these conditions are met, three copies (Surety, Court & Magistrate) of an automated receipt for the cash bond will print directly after the DC-330, [RECOGNIZANCE](#) form prints. No other action is required.

To void a receipt generated with a DC-330, [RECOGNIZANCE](#), the magistrate must issue another DC-330, [RECOGNIZANCE](#) within 1 hour of the original receipt being generated. When an OTN already has a bond attached to it, the system will display the question: Is this a split bond, a bailpiece release, an additional or a replacement bond? When a magistrate wants to void the receipt associated the previously issued DC-330, [RECOGNIZANCE](#), the magistrate would select “replacement” bond. Then the eMagistrate system will display this message: “The cash receipt(s) associated with this bond will be voided. Click the check box to continue.” When the magistrate checks the box to continue, the system will delete the old bond(s) and all previous receipts are voided and printed. All voided receipt(s) are displayed as voided in the monthly summary report.

Where a person must post an additional bond (**Example:** When a defendant appeals his or her conviction and the court requires an additional bond), the magistrate would select “additional bond.” When “additional bond” is selected, the previous bond receipt(s) is still displayed in the monthly summary report and additional bond information is shown in the reference area for the selected charges.

With the exception of criminal cash bonds (Revenue Code 502) transactions, magistrates must prompt the eMagistrate system to generate a receipt. To generate a receipt, go to the magistrate home page. Under the heading titled “Utilities,” select “Receipt.”

Magistrate: Duncan Sharon X			Region: 6	District: 14	Location: Henrico	LOG																														
Court ID: 087 Type: 																																				
☐ Prepayment ☒ Civil Filing ☐ DMV ☐ Criminal History ☐ Other																																				
☒ Cash ☐ Electronic ☐ Check ☐ Money Order																																				
			Chk # 	M.O.# 																																
Account of:																																				
	Last Name	First Name	Middle Name																																	
Received of:																																				
	Last Name	First Name	Middle Name																																	
Reference:																																				
Case #:		OTN:		Summons/Other:																																
<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th align="left">Code</th> <th align="left">Description</th> <th align="left">Amount</th> </tr> </thead> <tbody> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td></td> <td></td> <td></td> </tr> <tr> <td align="right" colspan="2">Total:</td> <td></td> </tr> </tbody> </table>							Code	Description	Amount																									Total:		
Code	Description	Amount																																		
																																				
																																				
																																				
																																				
																																				
																																				
																																				
																																				
Total:																																				

NOTE: When the eMagistrate system is inoperable and magistrates must issue a DC-7, RECEIPT. When the eMagistrate system is operable, magistrate must immediately re-enter the information from the DC-7 receipt into the eMagistrate system to generate an eMagistrate receipt. **ALSO NOTE:** Magistrates should make a notation on the eMagistrate receipt of the receipt number from the DC-7 RECEIPT. Magistrates would then staple the pink copy of the DC-7, RECEIPT to the eMagistrate system generated receipts and file with financial records. The yellow copy of the receipt stays with the DC-7 RECEIPT BOOK. Because the surety received the white copy of the DC-7 when receipted, the eMagistrate surety receipt would not be sent to the surety. The magistrate would attach the court copy eMagistrate receipt to the court paperwork and forward to the appropriate court.

Procedures for processing the receipt:

Step 1 Enter the **Court ID** number.

Step 2 Enter the case **Type**.

Comments:

GT for Traffic cases

GC for Criminal cases

CR for Circuit Court cases

Step 3 Select receipt type depending on the transaction.

Step 4 Select type of payment tendered.

Comments: If a check or money order is tendered payment, magistrates must put the check or money order number.

Step 5 Put name of person for which the money is received.

Comments: In criminal bond or prepayment cases, note the defendant's name on the **ACCOUNT OF** line. If processing a civil case, note the plaintiff's name and the number of civil processes issued.

Step 6 Note the name of the person or, in a cash bond situation if a person is representing a business entity, list the person representing the business entity and the business entity who gives the magistrate the cash, money or check on the **RECEIVED OF** line.

Comments: For criminal cash bonds, be sure to explain to the defendant and the surety, if any, that the clerk of court will refund any money remaining after the conclusion of the case only to the person or, if a person is representing a business entity, to the business entity whose name appears in the **RECEIVED OF** line of the receipt.

Step 7 Reference the underlying case, **OTN**, or summons number.

Step 8 Break down the money received into the proper revenue codes. The appropriate revenue codes are set forth in the “Fee and Prepayment Schedules” appendix in this manual.

To void the generated receipt, go to the magistrate home page and select “terminate a process.” On the next screen, select “receipt” as the process to be terminated. Then enter the receipt number and the reason for termination. Print a copy of the voided receipt and attach the voided receipt copies together with all original receipts, receipt for the surety, and the receipt for the clerk's office and file with the financial records.

VI. PREPARATION OF DC-7 RECEIPT

When the eMagistrate System is inoperable, magistrates who receive cash, electronic funds transfers, postal money orders, personal checks, or other negotiable instruments, must issue a DC-7, RECEIPT. An example of a DC-7, RECEIPT and instruction for preparing a DC-7, RECEIPT:

(THE COPY OF RECEIPT SHOWN BELOW IS A SIMULATED RECEIPT – ACTUAL RECEIPTS MAY DIFFER)

Collected for the: **1**
☐ General District Court ☐ J & DR District Court ☐ Circuit Court ☐ _____

County/City: **2** _____, VIRGINIA **3** _____, 19 _____ CASE NO. **4** _____

ACCOUNT OF **5** _____

RECEIVED OF **6** _____

110 State Fines	132 CIOF	217 C.A. Atty.-Local
112 Processing Fee	133 Blood Test Fees	219 Law Library
113 Witness Fee	135 Bad Check	220 CHMF
118 Civil Proc. Fee	140 DEJF	227 Civil Penalty
120 C.A. Atty.-State	109 Interest	242 Local Interest
121 F.T.A. Fee T.L.		502 Bonds
123 Legal Aid Fee		500 Escrow
129 Civil Penalty	201 Local Fines	515 Overpayment
		Total Received 7

I hereby certify this to be the Official Receipt Form authorized by law. Receipt in any other form shall not be valid against the Commonwealth of Virginia.

Form DC-7 (3/82)

Collecting Officer **8** _____

9 ☐ Paid in Full ☐ Partial Payment ☐ Prepayment
☐ Cash ☐ Check or M.O. ☐ Credit Card

10

The below listed numeric instruction corresponds with the circled numbers on the above example of the DC-7, RECEIPT.

Step 1 Check the box of the court having authority over the underlying case.

Comments:

If processing a cash criminal appeal bond, see instructions in the section of this chapter titled “Cash Criminal Appeal Bonds.”

Step 2 Insert the city or county of the court having authority over the case.

Step 3 Enter the current date on the receipt.

- Step 4** Do not note anything on the **CASE NO.** line.
- Step 5** In criminal bond or prepayment cases, note the defendant's name on the **ACCOUNT OF** line. If processing a civil case, note the plaintiff's name and the number of civil processes issued.
- Step 6** Note the name of the person who gives the magistrate the cash, money, or check on the **RECEIVED OF** line. In the cash bond situation, if a person is representing a business entity, list the person representing the business entity and the business entity who gives the magistrate the cash on the RECEIVED OF line.

Comments:

For criminal cash bonds, be sure to explain to defendant and surety, if any, that the clerk of court will refund any money remaining after the conclusion of the case only to the person or, if a person is representing a business entity, to the business entity whose name appears in the **RECEIVED OF** line of the receipt. whose name appears in the **RECEIVED OF** line of the receipt.

- Step 7** Break down the money received into the proper revenue codes. The appropriate revenue codes are set forth in the “Fee and Prepayment Schedules” appendix in this manual.
- Step 8** Add the amounts entered in the revenue codes and enter the total in this block.
- Step 9** Sign your name on the **COLLECTING OFFICER** line.
- Step 10** Always check the **PAID IN FULL** block and either the **CASH** or **CHECK OR M.O.** block. In prepayment transactions, also check the **PREPAYMENT** block.

When issuing a receipt whether automated or a DC-7, RECEIPT, magistrates must remember:

- Do not include other types of transactions on the same receipt. For example, if the defendant who is posting a cash bond wants to file a civil suit, the magistrate must issue one receipt for the cash criminal bond, and another receipt for the civil filing fees.
- When a defendant posts cash for bonds returnable to different courts, the magistrate must prepare a separate receipt for each court.

When the eMagistrate system is inoperable and magistrates must issue a DC-7, RECEIPT. When the eMagistrate system is operable, magistrate must immediately re-enter the information from the DC-7 receipt into the eMagistrate system to generate an eMagistrate receipt. Follow procedures outlined in section V. PREPARATION OF AUTOMATED RECEIPTS under B. Other Receipts. Further, magistrates should make a notation on the eMagistrate receipt of the receipt number from the DC-7 RECEIPT. Magistrates would then staple the pink copy of the DC-7, RECEIPT to the eMagistrate system generated receipts and file with financial records. The yellow copy of the receipt stays with the DC-7 RECEIPT BOOK. Because the surety received the white copy of the DC-7 when receipted, the eMagistrate surety receipt would not be sent to the surety. The magistrate would attach the court copy eMagistrate receipt to the court paperwork and forward to the appropriate court.

VII. TRANSMITTAL OFFUNDS

Magistrates must transmit all funds collected to the appropriate courts. When magistrates collect cash, magistrates must prepare one deposit ticket for the amount of cash collected for that day. Magistrates would then deposit the cash in the appropriate checking account.

The [Auditor of Public Accounts](#) requires that cash transactions be deposited by the next business day. Sort the automated receipts by locality and court. Prepare only one magistrate's check for each court. Do not issue the check until you have made the deposit. Deliver or mail the magistrate's check, as well as all personal checks or other negotiable instruments made payable to the court, the eMagistrate system generated receipts, and the case paper to the appropriate court(s). Attach the validated bank deposit receipt to the "magistrate copy" receipt and court issued receipt and file with financial records.

Examples for writing checks to the courts:

- If a magistrate collected \$1,000.00 for a criminal bond, \$5,000.00 for another criminal bond, and \$136.00 cash in prepayments for the Fairfax General District Court, and \$3,000.00 for a criminal bond for the Fairfax Juvenile and Domestic Relations District Court, and \$8,542.00 for a civil bond for the Fairfax Circuit Court, the magistrate would issue three separate checks - one check for \$6,136.00 issued to the Fairfax General District Court; one check for \$3,000.00 to the Fairfax Juvenile and Domestic Relations District Court; and one check for \$8,542.00 to the Fairfax Circuit Court.
- The combined district courts in most areas maintain separate accounting systems for the general district and juvenile and domestic relations divisions. Where this is the case, when magistrates process multiple transactions involving both courts, magistrates must issue separate checks to the general district court and the juvenile and domestic relations district court. If the courts have merged the accounting systems for both divisions, then magistrates would issue only one check to the combined court.

VIII. ACCEPTANCE OF CASH BONDS FOR DEFENDANTS JAILED IN ANOTHER LOCALITY

When magistrates collect cash bonds for defendants held in another locality, magistrates must print locally the DC-330, [RECOGNIZANCE](#) (along with the automated receipt) at the time the surety tenders cash to the magistrate. The magistrate and surety both sign the form. The magistrate would give the original receipt to the surety. The magistrate then faxes the signed DC-330, [RECOGNIZANCE](#) and DC-353, [RELEASE ORDER](#) to the facility wherein the defendant is in custody. The defendant signs the faxed form. The faxed DC- 330, [RECOGNIZANCE](#) becomes the original by virtue of [Va. Code § 19.2-3.1](#). The agency having custody of the defendant then sends the faxed form and the original warrant to the appropriate court. The magistrate forwards the automated receipt (court copy), magistrate check, and the DC-330, [RECOGNIZANCE](#) signed by the magistrate and surety to the appropriate court. The magistrate must mark on this DC-330, [RECOGNIZANCE](#): **"THIS IS A COPY - ORIGINAL FORWARDED WITH WARRANT."**

IX. CRIMINAL HISTORY FEE PROCEDURES

During the 2010 legislative session, the Virginia General Assembly passed an Act to amend and reenact [Va. Code §§ 19.2-120](#) and [19.2-389](#), relating to admission to bail and review of the defendant's criminal history by professionally licensed bondsman was passed. This legislation requires magistrates to provide, upon request by a bail bondsman, the criminal history of an accused for a fee on \$15.00.

Subsection F of [Va. Code § 19.2-120](#) states:

If the judicial officer sets a secured bond and the person engages the services of a licensed bail bondsman, the magistrate executing recognizance for the accused shall provide the bondsman, upon request, with a copy of the person's Virginia criminal history record, if readily available, to be used by the bondsman only to determine appropriate reporting requirements to impose upon the accused upon his release. The bondsman shall pay a \$15 fee payable to the state treasury to be credited to the Literary Fund, upon requesting the defendant's Virginia criminal history record issued pursuant to [§ 19.2-389](#). The bondsman shall review the record on the premises and promptly return the record to the magistrate after reviewing it.

When a bail bondsman requests a criminal history, magistrates must follow these procedures:

Step 1 The bail bondsman requesting criminal history must pay the magistrate \$15.00 for each criminal history request. The bail bondsman may pay by cash or certified funds.

Comments: If the bail bondsman pays by certified funds check, the bail bondsman must make the negotiable instrument payable to the general district court for the locality in which the magistrate is located.

Example: A Pulaski County magistrate takes a \$15.00 fee from a bail bondsman for the criminal history of a defendant who is scheduled for trial in Galax. The magistrate would forward this payment to the Pulaski County General District Court.

Step 2 The magistrate issues a receipt to the bail bondsman. Follow the instructions for preparing a receipt as previously outlined in this chapter.

Comments: The money is receipted under Revenue Code 116.

Step 3 On the receipt, the magistrate notes:

- On the **ACCOUNT OF** line, the name of the person whose criminal history was obtained.
- On the **RECEIVED OF** line, the name of the bail bondsman obtaining, and paying for, the criminal history. On the eMagistrate system generated receipt, the magistrate must reference the bail bondsman license number in the **OTHER** field.

- Step 4** If the magistrate receives cash, the magistrate must follow the accounting procedures as established for cash transactions. For all other types of payments, the magistrate would follow established accounting procedures.
- Step 5** The “Court Copy” of the receipt and the bail bondsman check or magistrate check is forwarded to the general district court for the locality where the magistrate is located.
- Step 6** The general district court clerk will receipt the fee under the appropriate revenue code and issue a **GENERAL MISC. RECEIPT**. On the **ACCOUNT OF** line of the receipt, the clerk notes the name of the bondsman who paid the fee. In the **RECEIVED OF** line, the court would put the name of the magistrate who transmitted the fee to the clerk's office. The clerk then forwards a receipt to the magistrate.
- Step 7** When the receipt is received from the court, place the receipt with all other paperwork pertaining to this transaction.

X. SURETY’S CAPIAS PROCEDURES FOR DEPOSIT BY BAIL BONDSMAN

During the 2020 legislative session, the Virginia General Assembly passed an Act to amend and reenact [Va. Code § 19.2-149](#), relating to bail bondsman surrender of principal and deposit. This legislation requires magistrates, when issuing a surety’s capias for a bail bondsman to collect 10% of the amount of the original bond for which the bondsman is the surety or \$50; whichever is greater unless bondsman’s reason for seeking the surety’s capias is that the principal failed to appear in any court.

Subsection F of [Va. Code § 19.2-149](#) states:

- a. A bail bondsman or his licensed bail enforcement agent on a bond in a recognizance may at any time arrest his principal and surrender him to the court before which the recognizance was taken or before which such principal's appearance is required, or to the sheriff, sergeant or jailer of the county or city wherein the court before which such principal's appearance is required is located; in addition to the above authority, upon the application of the surety, the court, or the clerk thereof, before which the recognizance was taken, or before which such principal's appearance is required, or any magistrate shall issue a capias for the arrest of such principal, and such capias may be executed by such bail bondsman or his licensed bail enforcement agent, or by any sheriff, sergeant or police officer, and the person executing such capias shall deliver such principal and such capias to the sheriff or jailer of the county or the sheriff, sergeant or jailer of the city in which the appearance of such principal is required, and thereupon the surety or the property bail bondsman shall be discharged from liability for any act of the principal subsequent thereto. Upon application of the surety for a capias, the surety shall state the basis for which the capias is being requested.

- b. Such sheriff, sergeant or jailer shall thereafter deliver such capias to the clerk of such court, with his endorsement thereon acknowledging delivery of such principal to his custody. If a magistrate issues a capias pursuant to this section, the magistrate shall transmit a copy of the capias to the court before which such principal's appearance is required by the close of business on the next day that is not a Saturday, Sunday, legal holiday, or day on which the court is lawfully closed.
- c. If a bail bondsman on a bond in a recognizance surrenders his principal for any reason other than the principal's failure to appear in any court, the bondsman shall deposit with the clerk or magistrate the greater of 10 percent of the amount of the bond or \$50, which shall be made at such time the bondsman makes application for a capias. The bondsman shall petition the court within 15 days from the surrender of the principal to show cause, if any can be shown, why the bondsman is entitled to the amount deposited. If the court finds that there was sufficient cause to surrender the principal, the court shall return the deposited funds to the bondsman. If the court finds that the surrender of the principal by the bondsman was unreasonable, the deposited funds shall be returned to the payer. Remission of funds shall not be issued by the court until the sixteenth day after the finding. If the bondsman does not petition the court for the return of the deposited fund within 15 days from the surrender of the principal, the deposited funds shall be paid into the state treasury to be credited to the Literary Fund. Nothing in this subsection shall apply to a private citizen who posted cash or real estate to secure the release of a defendant.

When a bail bondsman requests a surety's capias for a reason other than the principal's failure to appear in any court, magistrates must follow these procedures:

Step 1 The bail bondsman requesting a surety's capias must pay the magistrate 10% of the amount of the original bond for which the bondsman is the surety or \$50.00; whichever is greater. The bail bondsman may pay by cash or certified funds

Comments: If the bail bondsman pays by certified funds, the bail bondsman must make the negotiable instrument payable to the district or circuit court for the locality in which the case is returnable.

Step 2 The magistrate issues a receipt to the bail bondsman. Follow the instructions for preparing a receipt as previously outlined in this chapter.

Comments:

The money is receipted under Revenue Code 501.

Step 3 On the receipt, the magistrate notes:

- On the ACCOUNT OF line, the name of the defendant for which the surety's capias is being issued.
- On the RECEIVED OF line, the name of the bail bondsman seeking the surety's capias.

Step 4 If the magistrate receives cash, the magistrate must follow the accounting procedures as established for cash transactions.

For all other types of payments, the magistrate would follow established accounting procedures

Step 5 The “Court Copy” of the receipt and the bail bondsman check or magistrate check and a copy of the surety’s capias is forwarded to the appropriate district or circuit court for which the case is returnable.

Step 6 The appropriate court clerk will receipt the money under the appropriate revenue code and issues a receipt. The clerk then forwards a receipt to the magistrate.

Step 7 When the receipt is received from the court, place the receipt with all other paperwork pertaining to this transaction.

XI. PREPAYMENT PROCEDURES

Pursuant to [Va. Code §§ 16.1-69.40:1](#) and [16.1-69.40:2](#), the Supreme Court of Virginia designates, by Rules of Court, certain traffic offenses and non-traffic offenses for which a pretrial waiver of appearance, plea of guilty, and fine payment may be accepted.

a. Payable Offenses

i. Traffic Offenses

The Supreme Court lists those traffic offenses for which the magistrate or clerk may accept a pretrial waiver of appearance, guilty plea, and fine payment in [Rule 3B:2](#). It should be noted, that the Supreme Court may review and change [Rule 3B:2](#) at any time during the year. If an individual is charged with an offense listed in [Rule 3B:2](#), he or she may make a written appearance, waive trial, and plead guilty to a traffic offense prior to trial. The “Fee and Prepayment Schedules” appendix of this manual list those payable traffic offenses contained in [Rule 3B:2](#). Subsection A of [Va. Code § 16.1-69.40:1](#) allows the defendant to prepay an offense listed in [Rule 3B:2](#) (and parallel local ordinances), regardless of whether the defendant was involved in an accident or not.

[Virginia Code § 16.1-69.40:1 \(D\)](#) allows the circuit court judges in each circuit to enter an order providing for a prepayment schedule for local traffic offense ordinances that do not parallel provisions of state law. [Rule 3B:2](#) states that if a locality adopts a local ordinance which parallels state law, then the magistrate must use the Uniform Fine Schedule listed in [Rule 3B:2](#) in determining the amount of fines for the local traffic ordinances. Except in the rare instances listed in [Va. Code § 46.2-936](#), a law enforcement officer must issue a uniform traffic

summons to a person charged with a misdemeanor traffic offense or traffic infraction. If the offense is prepayable, the officer should have indicated this on the summons.

[Virginia Code § 16.1-69.40:1](#) does not authorize magistrates to accept traffic offense prepayments by mail. Magistrates also may not accept partial payments. Magistrates may accept prepayments for traffic offenses committed anywhere in Virginia.

When accepting traffic prepayments, magistrates must follow these procedures:

- Review the offender's copy of the summons. If the offender does not have a copy of the summons, the magistrate may not process the prepayment. Instead, the magistrate should advise the offender to contact the clerk's office where the original is on file.
- Determine whether the accused is an adult or juvenile. Pursuant to [Va. Code § 16.1-302](#), the chief judge of the juvenile and domestic relations district court must first authorize the acceptance of prepayments by juveniles.
- If the chief juvenile and domestic relations district court judge *has not authorized* magistrates to accept prepayments by juveniles, the magistrate instructs the *juvenile to appear in court on the trial date*.
- If the chief judge has authorized the juvenile prepayments, a parent, legal guardian, or person standing in *loco parentis* to the juvenile offender must accompany the juvenile and must sign the appearance, waiver, and plea section of the summons. If a parent, legal guardian, or person standing in *loco parentis* does not accompany the juvenile, the juvenile must provide the notarized signature of the parent or legal guardian on the appearance, waiver, and plea section of the summons.
- An emancipated juvenile may appear in person before the magistrate and sign the written appearance, waiver and plea form, provided that the written appearance, waiver and plea form is accompanied by a notarized sworn statement which details the facts supporting the claim of emancipated status. (As noted before, the chief juvenile and domestic relations district court judge must authorize juvenile prepayments.)
- Check the trial date that is listed on the summons.
 - If the trial date has expired, the offender must pay the clerk of the district court having jurisdiction.
 - If a future trial date appears, magistrates must ensure that they will be able to deliver pretrial pleas and payments to the clerk's office prior to the trial date. Some courts have established deadlines for prepayments,

e.g., magistrates may not accept prepayments less than 48 hours before trial date.

- Determine the amount of the fine and costs by referring to the “Fees and Prepayment Schedules” appendix in this manual.
- If there are multiple summonses or warrants, determine if each offense is prepayable or if the offender will have to appear for trial to answer any of the charges. (In rare situations, the issuing officer may have erroneously listed more than one charge on one summons.)
- If the defendant is charged with multiple traffic infractions that arose out of the same incident, magistrates must collect only one Fixed Fee (\$51.00 for the traffic infraction Fixed Fee under Revenue Code 460). Magistrates, however, must collect all other fees **for each charge**, if the locality has adopted these fees by ordinance.

For example, a law enforcement officer has charged the defendant with speeding ten miles over the posted 65 mph limit in violation of [Va. Code § 46.2-870](#), having improper rear lights in violation of [Va. Code § 46.2-1013](#), and having improper brake lights in violation of [Va. Code § 46.2-1014](#). All of these violations occurred from the same incident. The fine for speeding is \$6.00 per mile over the speed limit. The fine for improper rear lights is \$30.00. The fine for having improper brake lights is \$30.00. The locality in which the offenses occurred has adopted a \$1.00 Local Criminal Justice Training Academy Fee and the \$5.00 Court House Security Fee. If the defendant wishes to prepay all three traffic offenses, collect the following:

Fixed Fee (460)	51.00
Total Fines (110)	120.00
Local Criminal Justice Training Academy Fees (229)	3.00
Court House Security Fee (244)	15.00
Total	189.00

- If a traffic infraction and a misdemeanor arose out of the same transaction and the offender wishes to prepay both, assess only one misdemeanor Fixed Fee (\$61.00) and **NO** traffic infraction Fixed Fee. However, any other add-on fees must be collected for each charge.
- If the offender wishes to prepay one charge but wants to have the other charge heard by the court, still accept the prepayment.
- Localities may adopt an ordinance, which requires the owner or operator of a motor vehicle to obtain and display the local motor vehicle license in accordance with [Va. Code § 46.2-752](#). State police officers are empowered by

[Va. Code § 46.2-102](#) to enforce local ordinances so adopted, pursuant to [Va. Code § 46.2-752](#). When magistrates process prepayments for violations of such local ordinances issued by a state police officer with a VIRGINIA UNIFORM SUMMONS, magistrates must allocate the fine as follows:

- 50% of the fine appears under Revenue Code 104 [SPEXPTAG] **and**
 - 50% of the fine appears under Revenue Code 201 (or the specific revenue code for the town whose ordinance the defendant violated). This change does not affect the other fees associated with a traffic violation prepayment.
- Instruct the offender to read the “Rights Notice” and “Appearance, Waiver and Plea” section of the VIRGINIA UNIFORM SUMMONS.
 - Obtain the offender’s signature on the “Appearance, Waiver and Plea” section of the VIRGINIA UNIFORM SUMMONS, or have the offender sign a DC- 324, [NOTICE - APPEARANCE, WAIVER AND PLEA](#) form.

However, the offender is not required to sign the “Appearance, Waiver and Plea” section of the VIRGINIA UNIFORM SUMMONS, or to sign a DC- 324, [Notice - Appearance, Waiver and Plea](#) form. [Virginia Code § 19.2- 254.1](#) states that when the accused tenders payment without executing a written waiver of court hearing and entry of guilty plea, such tender of payment shall itself be deemed a waiver of court hearing and entry of guilty plea.

- If a person other than the offender appears before the magistrate to prepay the offender's traffic offense, the magistrate **may accept** the payment if that person presents the offender's summons regardless of whether the offender signed the appearance, waiver, and plea section. The magistrate would take the copy of the summons and transmit it with the magistrate's check (or check made payable to court), and the receipt to court.
- Require the offender to pay fines and costs by cash, postal money order, or check.
 - [Virginia Code § 19.2-353.3](#) requires magistrates to accept personal checks and money orders for payment of fine, penalties, fees and costs.
 - Defendants must pay the full amount due. Magistrates may not accept partial payments.
 - Magistrates must require the offender to make the check payable to the court. Magistrates, however, must issue a receipt when the offender pays by personal check made payable to the court or by money order. If the bank later refuses to honor the check, the court by certain accounting adjustments will back the entry out of the accounting system and mark the fine and costs unpaid.

- Follow all accounting procedures for generating a receipt and transmitting funds to the appropriate court.
- Non-Traffic Offenses

Misdemeanors fall into four classes for purposes of punishment and sentencing. Defendants may prepay only certain class 3 and class 4 misdemeanors. Class 1 and Class 2 misdemeanors are never prepayable offenses. Misdemeanors for which the authorized punishment upon conviction is a fine of not more than \$500 are classified as Class 3 misdemeanors. Misdemeanors for which the authorized punishment upon conviction is a fine of not more than \$250 are classified as Class 4 misdemeanors. The Supreme Court designates by Rule of Court those non-traffic offenses for which magistrates may accept a pretrial waiver or appearance, plea of guilty, and fine payment. An accused may make a written appearance, waive trial, and plead guilty to the non-traffic offenses charged prior to trial for any misdemeanor listed in [Rule 3C:2](#).

The Uniform Fine Schedule ([Rule 3C:2](#)) promulgated by the Supreme Court pursuant to [Va. Code § 16.1-69.40:2](#) lists the class 3 and class 4 misdemeanors, which a person may prepay. The “Fee and Prepayment Schedules” appendix of this manual list those prepayable non-traffic offenses contained in [Rule 3C:2](#).

In addition to the offenses listed in [Rule 3C:2](#), the law provides that, subject to the same exceptions listed above, defendants may prepay local ordinances in a like manner if such ordinances appear in a schedule entered by order of the local circuit court judges. The judges of the circuit court may establish a schedule of fines, uniform in its application throughout the circuit, if the judges designate each offense specifically.

Magistrates may accept prepayments for non-traffic offenses committed anywhere in Virginia. [Va. Code § 16.1-69.40:2](#) does not authorize magistrates to accept non-traffic offense prepayments by mail. Magistrates also may not accept partial payments.

When accepting non-traffic prepayments, magistrates must follow these procedures:

- Review the offender's copy of the summons or warrant. If the offender does not have a copy, magistrates may not process the prepayment. Instead, advise the offender to contact the clerk's office where the original is on file.
- Determine whether the accused is an adult or a juvenile. **Virginia law does not allow juveniles to prepay non-traffic offenses.**
- If the offense is a violation of another district's local ordinance, magistrates must contact the court of the locality having jurisdiction over the case to

inquire whether the offense is prepayable. If the clerk's office is closed magistrates must advise the offender to contact the appropriate court to inquire about the possibility of prepaying the offense by mail, on-line or in person.

- Check the trial date listed on the summons or warrant.
 - If the trial date has expired, the offender must pay the clerk of the district court having jurisdiction.
 - If a future trial date appears, magistrates must ensure that they will be able to deliver payment and documentation to the clerk's office prior to the trial date. Some courts have established deadlines for prepayments, e.g., that magistrates may not accept prepayments less than 48 hours before trial date.
- Determine the amount of the fine and costs by referring to the “Fee and Prepayment Schedules” appendix in this manual.
- If there are multiple summonses or warrants, determine if each offense is prepayable or if the offender will have to appear for trial to answer any of the charges. (In rare situations, the issuing officer may have erroneously listed more than one charge on one summons.)
 - If a defendant is charged with multiple prepayable offenses that arose from the same incident, magistrates must collect only one Fixed Fee (\$61.00 for the Misdemeanor Fixed Fee under Revenue Code 461). However, magistrates must collect all other fees **for each charge**, if the locality has adopted these fees by ordinance.
 - If a traffic infraction and a misdemeanor arose out of the same incident and the offender wishes to prepay both, a magistrate assesses only one misdemeanor Fixed Fee (\$61.00) and **NO** Traffic Fixed Fee.

For example, a law enforcement officer has charged the defendant with speeding ten miles over the posted 65 mph limit in violation of [Va. Code § 46.2-870](#) and drinking an alcoholic beverage while driving in violation of [Va. Code § 18.2-323.1](#). Both violations occurred from the same incident. The fine for speeding is \$6.00 per mile over the speed limit. The fine for drinking alcoholic beverages while driving is \$35.00. The locality in which the offenses occurred has adopted a \$1.00 Local Criminal Justice Training Academy Fee and the \$5.00 Courthouse Security Fee. Pursuant to [Va. Code § 17.1-275.12](#) an additional fee of \$15.00 must be assessed for each misdemeanor. If the defendant wishes to prepay both violations, collect the following:

Misdemeanor Fixed Fee (461)	61.00
Internet Crimes Against Children Fund (001)	15.00
Total Fines (110)	95.00
Local Criminal Justice Training Academy Fees (229)	2.00
Courthouse Security Fee (244)	<u>10.00</u>
Total	183.00

- If an offender wishes to prepay one charge but wants to have the other charge(s) heard by the court, magistrates may accept the prepayment. At trial the court would not assess any additional fixed fees should the court find the offender guilty of the remaining offense(s) if all charges arose out of the same incident, since a magistrate had already collected the costs at the time of the prepayment.
- Provide the offender with a copy of the DC-324, [NOTICE - APPEARANCE, WAIVER AND PLEA](#) form and instruct the defendant to read the rights notice.
- Obtain the offender's signature on the DC-324, [NOTICE - APPEARANCE, WAIVER AND PLEA](#) form.
- However, the offender is not required to sign the “Appearance, Waiver and Plea” section of the VIRGINIA UNIFORM SUMMONS, or to sign a DC-324, [NOTICE - APPEARANCE, WAIVER AND PLEA](#) form. [Virginia Code § 19.2-254.2](#) states that when the accused tenders payment without executing a written waiver of court hearing and entry of guilty plea, such tender of payment shall itself be deemed a waiver of court hearing and entry of guilty plea.
- Furthermore, if a person other than the offender appears before the magistrate to prepay the offender's non-traffic offense, magistrates must accept the payment if that person presents the offender's summons or warrant, regardless of whether the offender has signed the DC-324, [NOTICE - APPEARANCE, WAIVER AND PLEA](#) form.
- Require the offender to pay fines and costs by cash, postal money order, or check.
 - [Virginia Code § 19.2-353.3](#) requires magistrates to accept personal checks and money orders for payment of fine, penalties, fees and costs.
 - Defendants must pay the full amount due. Magistrates may not accept partial payments.
 - Magistrates must require the offender to make the check payable to the court. Magistrates, however, must issue a receipt when the offender pays by personal check made payable to the court or by money order. If the bank later refuses to honor the check, the court by certain accounting adjustments will back the entry out of the accounting system and mark the fine and costs unpaid.

- Follow all accounting procedures for generating a receipt and transmitting funds to the appropriate court.
- Hunting, Trapping or Fishing Without a License

[Virginia Code § 29.1-335](#) requires that the accused pay an amount equivalent to the cost of the license that the accused failed to purchase. When a magistrate accepts a prepayment for a violation of this offense, the magistrate must also collect the cost of the appropriate license, in addition to the fines and processing fees. The magistrate must list the amount collected for the license under **Revenue Code 134**. If processing a DC-7, RECEIPT, the magistrate's receipt book may be outdated and may not contain this revenue code. In this case, magistrates would write in one of the blank spaces of the receipt "**134 Game Replacement**." The "Fee and Prepayment Schedules" appendix in this manual contains a list of license fees. **Even if the accused purchases a license after receiving the summons, magistrates must still collect this fee.** Magistrates must make clear to the accused that the license fee is collected as part of the fine and the accused is not purchasing the license. If the accused wishes to purchase a license, he or she must do so from an appropriate vendor.

b. Non-prepayable Offenses

i. Traffic Offenses

[Virginia Code § 16.1-69.40:1](#) lists the categories of offenses that the Supreme Court has not designated as prepayable. These are:

- Indictable offenses,
- Operation of a motor vehicle while under the influence of intoxicating liquor or a narcotic or habit-forming drug, or permitting another person who is under the influence of intoxicating liquor or a narcotic or habit-producing drug to operate a motor vehicle owned by the accused or in his custody or control,
- Reckless driving,
- Leaving the scene of an accident,
- Driving on a suspended or revoked license,
- Driving without being licensed to drive.

- Non-Traffic Offenses

[Virginia Code § 16.1-69.40:2](#) sets forth the type of non-traffic offenses, which the Supreme Court may not designate as prepayable. These are:

- Indictable offenses,
- Class 1 or 2 misdemeanors,
- Offenses that involve moral turpitude,
- Offenses involving injury to person,
- Offenses punishable by incarceration or by a fine of more than \$500.

XII. CASH CRIMINAL BONDS

▪ Instructions For Processing A Cash Criminal Bond

- Ascertain the amount of bond from the DC-352, [COMMITMENT ORDER](#) or from the DC-355, [ORDER FOR CONTINUED CUSTODY](#).
- Take only United States currency. Magistrates may not accept a personal check, cashier's check, money order, or a certified check for a criminal bond.
- Count the money and place it in an envelope. Each cash bond should be kept in a separate envelope.
- Take reasonable precautions to determine that the money passed is authentic United States currency. If the magistrate suspects that one or more of the bills is counterfeit, the magistrate should not process the recognizance or confront the surety, but should instead, immediately contact law enforcement and his or her chief magistrate.
- Prepare the DC-330, [RECOGNIZANCE](#) form or forms and have the defendant and surety, if any, to sign it. When magistrates indicate a surety is posting cash, the eMagistrate system will automatically generate a receipt when the DC-330, [RECOGNIZANCE](#) form is printed.

In a situation where a defendant's bond is \$1,000.00, and three sureties wish to post varying amounts of cash to meet the total amount, a magistrate would issue a separate DC-330, [RECOGNIZANCE](#) for each surety. For example, if Mr. Jones posted \$300.00 of the \$1,000.00 bond, prepare one DC-330, [RECOGNIZANCE](#) and insert \$300.00 for the amount of bond. Mr. Jones and the defendant would both sign this form. Then prepare the two other DC-330, [RECOGNIZANCE](#) forms by inserting the specific bond amount for which each of the other two sureties are

liable. Likewise, the subsequent sureties and the defendant would sign the two other DC-330, [RECOGNIZANCE](#) forms.

As previously stated, when an OTN already has a bond attached to it, the system will display the question: “Is this a split bond, a bailpiece release, additional bond or a replacement bond?” Where multiple sureties wish to post a defendant’s bail, the magistrate would select “split bond.” When “split bond” is selected, any previously issued receipt is retained and the receipt information is displayed in monthly summary report. Furthermore, the split bond information is shown in the reference area.

- When the eMagistrate system is inoperable, magistrates must issue a DC-7, RECEIPT. Prepare the receipt as described in “Preparation Of A DC-7, RECEIPT” in this chapter. When operable, immediately enter the receipt into the eMagistrate system and follow previously discussed accounting procedures.

XIII. INTERNAL REVENUE SERVICE FORM 8300

In certain cash criminal bond cases, magistrates will need to prepare an [Internal Revenue Service Form 8300](#). Preparation of this form is only required in the following situations:

- One or more of the underlying criminal charges are a violation of:
 - [Virginia Code §§ 18.2-247](#) through 18.2-264 (drug related offenses), or
 - [Virginia Code § 18.2-246.3](#) (money laundering), or
 - [Virginia Code §§ 18.2-325](#) through 18.2-340 (gambling offenses) AND
 - Amount of the required secured bond is \$10,000.01 or more **AND**
 - The defendant or surety posts \$10,000.01 or more in currency or coin.

NOTE: These aggregation rules apply to currency/coins taken for a bond returnable to only one court.

Example: Law enforcement arrests the defendant in Norfolk on a Norfolk Circuit Court capias for a direct indictment charging the defendant with money laundering in violation of [Va. Code § 18.2-246.3](#) and on a felony warrant for distribution of a controlled substance in violation of [Va. Code § 18.2-248](#) returnable to the Norfolk General District Court. The defendant is also arrested on a felony warrant also for distribution of a controlled substance in violation of [Va. Code § 18.2-248](#) returnable to the Hampton General District Court. A Norfolk Magistrate sets a \$9,000.00 for the Norfolk Circuit Court indictment, a \$5,000.00 bond for the charge returnable to the Norfolk General District, and a \$5,000.00 bond for the charge returnable to the Hampton General District Court.

The defendant gives the magistrate \$19,000.00 in currency to satisfy the bond amounts. In this case the magistrate does **not** prepare the [IRS Form 8300](#) since no amount in excess of \$10,000.00 is destined to any one court.

- Preparing The Internal Revenue Service Form 8300

Upon completion of a [Form 8300](#), magistrates must promptly transmit the form, the DC-330, [RECOGNIZANCE](#) and magistrate's check to the appropriate court.

Magistrates complete **Parts I, II, and III** of the [Form 8300](#) only.

- Part I:
 - Pertains only to the surety posting cash in the amount of \$10,000.01 or more for a defendant charged with one or more of the underlying criminal offenses. If the person represents a business entity who is posting cash for a defendant, the individual representing the business entity must be listed in Part I and the business entity would be listed in Part II (See instructions for Part II below).
 - [Virginia Code §§ 18.2-247](#) through 18.2-264 (drug related offenses), **or**
 - [Virginia Code § 18.2-246.3](#) (money laundering), **or**
 - [Virginia Code §§ 18.2-325](#) through 18.2-340 (gambling offenses).
 - Magistrates must note the correct social security number (if a surety is a person posting cash on behalf of the defendant) or employer identification number (if the surety is a representing a business entity posting cash for a defendant) in block 6 of Part I.

[IRS Publication 1544](#) says that magistrates do not have to furnish the tax identification number of a nonresident alien person if he or she does not have income connected with the conduct of a trade or business in the United States **or** does not file a federal income tax return.

- In block 13 of Part I, magistrates must fully describe the occupation, profession, or business of the surety. Example: dentist, farmer, factory worker, self-employed carpenter.
- Magistrates must verify the name and address of the surety by examining a document normally accepted as a means of identification, e.g., a driver's license, passport, or other official document.
- Magistrates must describe the document used to verify the name and address of the person in block 14 of Part I.
- If more than one surety posts cash in an amount of \$10,000.01 or more as calculated above, magistrates must complete Part I on the back of [Form 8300](#) for the second or third surety.

- If four or more people are involved, photocopy the back of [Form 8300](#) and complete for the fourth or fifth person.
- Part II:
 - Pertains to the information about the defendant and, in the situation where a business entity posted cash for the defendant's bail, the business entity. If the cash bond is received by a business entity, the magistrate would list the defendant's name on Part II of the first page and, on line 15, check the box that states, "If the transactions was conducted on behalf of more than one person, check here and see instructions" Then the magistrate would go to page 2 of the form and complete Part II titled "Continued-Complete if box 15 on page 1 is checked"
 - Complete Part II only if a surety or sureties have posted all or part of the Cash.
 - If the defendant has posted all of the case, ***do not complete Part II.***
- Part III:
 - Note that in block 32 of Part III, magistrates must note the amount taken in \$100 bills or higher.
 - Magistrates must also note the issuer's name(s) and serial number(s) of all non-currency/coin instruments.
 - Always check **box i** of block 33 of Part III
 - In block 34 or Part III, insert the following language: "**cash criminal bond for the offense of** (briefly describe the underlying criminal offense or offenses).

XIV. CASH CRIMINAL APPEAL BONDS

Pursuant to [Va. Code § 16.1-135](#), magistrates must accept and process an appeal bond when neither the judge nor clerk is available. When a surety posts cash for an appeal bond, magistrates must follow these instructions:

- a. **Within Ten (10) Days of Conviction**
 - i. Issue the DC-330, [RECOGNIZANCE](#) requiring the appearance of the accused before the circuit court on the date and time noted on the DC-356, [DISPOSITION NOTICE](#). When magistrates indicate a surety is posting cash, the eMagistrate system will automatically generate a receipt when the DC- 330, [RECOGNIZANCE](#) form is printed. As previously stated, when an OTN

already has a bond attached to it, the system will display the question: Is this a split bond, a bailpiece release, additional bond or a replacement bond? In this situation, the magistrate would select “additional bond.” The eMagistrate System will then enable the "cash appeal bond" option. Once selected, the “Receipt returnable to” box is enabled which allows magistrate to select which court to make the receipt returnable to. When the appeal bond is posted within 10 days of the conviction date, the receipt will be returnable to either the General District Court or the Juvenile and Domestic Relations District Court (whichever court entered the final disposition in the case being appealed).

- ii. If the eMagistrate system is inoperable, complete a DC-7, RECEIPT and check either the General District Court or Juvenile and Domestic Relations Court box depending on which court entered the final disposition of the case being appealed. When the eMagistrate system is operable, immediately enter the receipt information into the eMagistrate system and follow previously discussed accounting procedures. Staple the pink copy of the DC-7, RECEIPT to the eMagistrate system generated receipt (surety and magistrate copies) and file with financial records.
- iii. Forward to the district court that convicted the defendant, the eMagistrate system generated receipt (court copy), the magistrate's check made payable to that court, and the DC-330, [RECOGNIZANCE](#).
- iv. The district court clerk will then:
 - Send the magistrate a receipt for the bond.
 - Forward the court papers and check for the bond amount to the circuit court if the appeal is perfected.
 - Refund the bond to the surety if the appeal is withdrawn.

b. After Ten (10) Days of Conviction

- i. Issue the DC-330, [RECOGNIZANCE](#) requiring the appearance of the accused before the circuit court on the date and time noted on the DC-356, [DISPOSITION NOTICE](#). When magistrates indicate a surety is posting cash, the eMagistrate system will automatically generate a receipt when the DC- 330, [RECOGNIZANCE](#) form is printed. As previously stated, when an OTN already has a bond attached to it, the system will display the question: Is this a split bond, a bailpiece release, additional bond or a replacement bond? In this situation, the magistrate would select “additional bond.” The eMagistrate System will then enable the "cash appeal bond" option. Once selected, the “Receipt returnable to” box is enabled which allows magistrate to select which court to make the receipt returnable to. When the

appeal bond is posted after 10 days of the conviction date, the receipt will be returnable to Circuit Court.

- ii. If the eMagistrate system is inoperable, complete a DC-7, RECEIPT and check the Circuit Court box on the magistrate's DC-7, RECEIPT. When the eMagistrate system is operable, immediately enter the receipt information into the eMagistrate system and follow previously discussed accounting procedures.
- iii. Follow other accounting procedures associated with the receipting process.

XV. ATTACHMENTS OF VEHICLES FOR OVERWEIGHT OR FOR UNPAID FEES OR PENALTY CASES

There are two types of vehicle attachments. The first type involves an overweight vehicle whereby the charging officer will not allow the operator of a vehicle to sign the citation for cases in violation of [Va. Code § 46.2-1126](#). The second type involves a vehicle whereby the charging officer will not allow the operator of a vehicle to sign the citation for cases in violation of [Va. Code § 46.2-613.1](#).

For these types of attachments, the following accounting procedures are applicable:

- Ascertain whether the defendant wishes to pay the liquidated damages, civil penalty, weighing fee, or unpaid fees and penalties, and processing fee in lieu of having the attachment summons issued.
- If the defendant does not pay the liquidated damages, additional liquidated damages fee, civil penalty, weighing fee, or unpaid fees and penalties and processing fee, issue the attachment summons if the petition sets forth sufficient facts to support the ground for attachment. If the magistrate issues the attachment summons, the officer will attach the truck and goods and will hold it until trial, unless the defendant posts a defendant's bond. See the "Civil Procedures" chapter for further information. The revenue code for the defendant's bond is 503.
- If the defendant chooses to pay the associated costs and processing fees, figure the total amount by referencing the "Fee And Prepayment Schedules" appendix in this manual.
- [Virginia Code § 19.2-353.3](#) requires that magistrates accept personal checks for payment of fees, fines, penalties and costs. The defendant may also pay with U.S. currency or by a postal money order.

- If the commercial motor vehicle operator pays by personal check or postal money order, ensure that the operator makes the negotiable instrument payable to the [Department of Motor Vehicles](#).
- If the eMagistrate system is inoperable, issue a DC-7, RECEIPT. Give the original white DC-7, RECEIPT to the motor vehicle operator. When the eMagistrate system is operable, immediately enter the receipt information into the eMagistrate system. Attach the pink copy of the DC-7, RECEIPT to the eMagistrate system generated receipt ("court" and "magistrate" copies). Since magistrates do not receive a receipt from the court or DMV, the "court" copy will act as the magistrate's receipt.
- Mail all documents to the [Division of Motor Vehicles](#).

XVI. CIVIL FEES

This section describes the procedure for processing civil fees:

- Examine the civil warrant for completeness and determine proper fees and costs for each civil process requested. For correct amount of fees and for the proper revenue codes, see the "Fee and Prepayment Schedules" appendix of this manual.
- In Attachment, Detinue Seizure, and Distress cases, determine the amount of plaintiff's bond.
- Magistrates may accept United States currency, a postal money order, or personal checks **for civil fees and costs**. Magistrates may only accept cash for bonds. If a magistrate takes a postal money order or check rather than currency for civil fees and costs, have the surety or defendant make the negotiable instrument payable to the appropriate court.
- Issue an eMagistrate generated receipt, or DC-7, RECEIPT if the eMagistrate system is inoperable.
- For proper case paper distribution in civil cases, refer to the chapter on "Civil Procedures."

XVII. ON-LINE BANKING POLICY

Chief magistrates may receive electronically transmitted bank statements. These statements may be downloaded and printed. However, chief magistrates must not download the bank statements into Quicken (or any other banking program) before printing it. It must be in PDF format. If the electronically transmitted bank statements are sent via email, these statements must be sent to the chief magistrate's state email account, not to his or her

personal email account. When chief magistrates print the bank statements, they must sign and date each statement and then attach the statement to a completed bank reconciliation form. If a chief magistrate opts to receive electronically transmitted bank statements, the chief magistrate must print bank statements and complete bank reconciliation forms every month.

XVIII. BANK STATEMENT RECONCILIATION

Chief magistrates must staple all canceled and voided checks to the respective bank statement. However, since many banks no longer return canceled checks with the monthly bank statement, if the bank statements identify the paid checks by number, chief magistrates do not have to insist that the bank return the original or photocopies of the canceled checks.

Chief magistrates must prepare a bank reconciliation form upon receipt of each bank statement. The purpose of the bank reconciliation form is to:

- 1) Explain normal differences between magistrate checkbook figures and bank statement figures; and
- 2) Ascertain variances requiring investigation, correction, or adjustment. An example of a DC-17M, BANK RECONCILIATION form is provided on the following page.

If the bank statement does not reconcile, check the following:

- a. Are all deposits listed in the checkbook registry listed on the bank statement?
 - b. Are all checks listed in the checkbook registry listed on the bank statement?
 - c. All additions and subtractions in the checkbook registry.
 - d. If the difference between the bank statement ending balance and the balance in the checkbook is divisible by 9, look for a transposition of numbers. This is known as the “rule of nines.”
 - e. The check amounts to the actual amount paid by the bank.
- 3) If, after following the above steps, the statement still does not reconcile, call the Department of Magistrate Services for assistance.

XIX. BANKRECONCILIATION

(FILE RECONCILIATION WITH BANK STATEMENT)

MAGISTRATE NAME:	
MONTH:	
BANK STATEMENT DATE:	
BANK STATEMENT BALANCE:	\$.

		DATE	AMT.
Add	Deposits in Transit (Deposits made to bank account but not credited to bank statement)		\$.
			\$.
			\$.
			\$.
TOTAL:			(+) .

		CHECK	AMT.
Subtract:	Outstanding Checks (Checks written but not on bank statement)		\$.
			\$.
			\$.
			\$.
		TOTAL: -----▶ (-) .	

Balance Per Bank After Adjustments	\$.
	A
Balance Per Checkbook	\$.
Add/Subtract Any Adjustments (Explanation below*)	() .
Balance Per Checkbook After Adjustments	\$.
	B

BANK STATEMENT RECONCILES WHEN A=B

PREPARED BY:
Date:

DC-17M (A705310 9/04)

Department of Magistrate Services
Rev: 7/26

XX. RECORDS RETENTION

Magistrates and chief magistrates are responsible for the retention of certain records for audit purposes. The Committee on District Courts has established a three-year retention period for the following documents:

- eMagistrate system generated receipts
- DC-7, RECEIPT
- Receipts received from courts
- Validated bank deposit receipts
- Canceled checks
- Voided checks
- Bank statements and DC-17M, BANK RECONCILIATION forms
- DC-892, MAGISTRATE MONTHLY SUMMARY REPORTS
- Monthly accounting summary reports

Pursuant to [Va. Code § 16.1-69.57](#), all affected records must be destroyed at the end of the time period cited. However, all records must be retained until the records have been audited. When computing the time period for retention of records, use the end of the fiscal year for which the records were issued or received. For example, all canceled checks must be retained for a period of three years from the end of the fiscal year in which such checks were issued. If at the end of the three-year period, an audit has not been conducted, the records must be retained until the records are audited.

XXI. GUIDELINES FOR CLAIMS RESULTING FROM LOSS

[Virginia Code § 16.1-69.40:3](#) absolves clerks, judges and, by inference, magistrates from personal liability for loss of funds if negligence, failure to exercise appropriate supervision, or intentional misconduct does not cause the shortage of funds.

[Virginia Code § 16.1-69.33](#) authorizes the Committee on District Courts to reimburse magistrates for the loss of property or money up to \$1,000.00, if the loss is due to a robbery or burglary. However, the Committee cannot reimburse a magistrate until after an appropriate investigation has been conducted and a determination that the magistrate was not negligent in the performance of his or her duties. When a magistrate sustains a loss, the magistrates must:

- Report the loss to a law enforcement agency, preferably the [Virginia State Police](#), and request an investigation of the loss.
- Notify the supervising chief magistrate and describe the circumstances.
- Report the loss to the Director, Department of Magistrate Services, 100 N. 9th Street, 3rd Floor, Richmond, Virginia 23219 (804-786-8476).

- If necessary, request an audit from the [Auditor of Public Accounts](#), specifically the Director, Judicial Systems, 101 N. 14th Street, 8th Floor, Richmond, Virginia 23219 (804-225-3350, ext 337, Fax: 804-225-3357).

At the conclusion of the police investigation and audit, *the chief magistrate supervising* the magistrate who incurred the loss must file the following documents with the Director, Department of Magistrate Services:

- A copy of the police investigation report;
- A copy of the audit report;
- A statement of facts about how the loss occurred; and
- A request for reimbursement.

Upon receipt of the above, the Executive Secretary of the Supreme Court will distribute copies of these documents to each member of the Committee on District Courts. The Committee will then review the matter, render a decision and inform the magistrate by letter.

XXII. YEARLY FINANCIAL STATEMENT

Chief magistrates are required to file a financial statement with the [Auditor of Public Accounts](#) by September 1 of each year. The financial statement reports the financial information as of the close of business on June 30th. Chief magistrates must acknowledge this financial statement under oath. Another magistrate, a clerk or deputy clerk, or a Notary Public may complete the acknowledgment section of the form. Chief magistrates must send a copy of the completed MAGISTRATE FINANCIAL STATEMENT to the [Auditor of Public Accounts](#). Chief magistrates must file a report even if the balance in the magistrate's account is zero. The next page contains a recommended MAGISTRATE FINANCIAL STATEMENT form.

MAGISTRATE FINANCIAL STATEMENT

ASSETS as of close of business on June 30, :

Cash in office and checks on hand made payable to court \$

Monies on deposit in magistrate's checking account on June 30 \$

TOTAL ASSETS \$

LIABILITIES as of close of business on June 30, :

Monies due Court \$

Monies due Court \$

Monies due Court \$

Monies due Court \$

Monies due Magistrate (minimum balance maintained in account) \$

TOTAL LIABILITIES \$

I certify the above statement to be an accurate financial condition of this office on the close of business, June 30, and the cash as shown in the office or in the bank account.

Signature , Magistrate, Judicial District

Type or print name: Date:

Subscribed and sworn to before me on

Signature Title

If Notary Public: My Commission expires the day of

MAIL TO: Auditor of Public Accounts
P. O. Box 1295
Richmond, VA 23218

XXIII. SUPERVISION AND INTERNAL CONTROLS

Chief magistrates are responsible for ensuring compliance with the accounting procedures set forth in this chapter. Chief magistrates must ensure that financial records are secure from alteration or inappropriate destruction. Magistrates must maintain competency in accounting procedures through continued education and training. Chief magistrates should establish written policies and implement procedures to control access to restricted areas, cash drawers, change funds, office equipment and software, office keys, office records, office safe combination, and postage stamps.

XXIV. POLICIES AND PROCEDURES UPON VOLUNTARY OR INVOLUNTARY TERMINATION OF MAGISTRATES

When magistrates vacate their position, either by resignation or termination, magistrates must deliver the following financial records to their chief magistrate:

- eMagistrate System regenerated receipts
- All receipts received from courts
- All validated bank deposits receipts
- All cancelled checks (if banks provide such)
- All voided checks
- All bank statements
- DC-892, MAGISTRATE MONTHLY SUMMARY REPORTS
- Monthly accounting summary reports
- DC-17M, BANK RECONCILIATION forms

Furthermore, magistrates must return all identification badges, office keys, and any other property obtained during their tenure as a magistrate. Chief magistrates should require magistrates to turn over the financial records and all other property on or before their last day of employment. If magistrates fail to return the records and property prior to leaving office, chief magistrates must obtain the records and property within ten days of the date of separation. If a chief magistrate is unavailable because of illness or extended leave during this time, the responsibility for collecting the records and property falls to the regional magistrate supervisor. Chief magistrates need to establish written policies on this issue. To avoid confusion, chief magistrates must require new magistrates to sign an acknowledgement of receipt of such policies and procedures during the orientation process.

[Virginia Code § 42.1-88](#) requires a magistrate who leaves office to deliver all books (including the *MAGISTRATE MANUAL*), writings, letters, documents, public records, or other information, recorded on any medium, kept or received by the magistrate in the transaction of official business to the magistrate's successor. Chief magistrates or, where a chief magistrate is not available, regional magistrate supervisors are deemed the successor. In accordance with [Va. Code § 42.1-88](#), when any magistrate fails to return the above financial records, his or her chief magistrate or regional magistrate supervisor must send the magistrate a written request for the records and require compliance within ten days.

Thereafter, if the magistrate fails to comply, he or she may be charged, pursuant to [Va. Code § 42.1-88](#), with a Class 3 misdemeanor. This code section states:

Any custodian of any public records shall, at the expiration of his term of office, appointment or employment, deliver to his successor, or, if there be none, to The Library of Virginia, all books, writings, letters, documents, public records, or other information, recorded on any medium kept or received by him in the transaction of his official business; and any such person who shall refuse or neglect for a period of ten days after a request is made in writing by the successor or Librarian of Virginia to deliver the public records as herein required shall be guilty of a Class 3 misdemeanor.

Furthermore, magistrates who fail to return ID badges, keys or other property belonging to the locality or Commonwealth is in violation of subsection A of [Va. Code § 18.2-503](#), a Class 3 misdemeanor. This statute specifically states:

“No person shall knowingly possess any key to the lock of any building or other property owned by the Commonwealth of Virginia, or a department, division, agency or political subdivision thereof, without receiving permission from a person duly authorized to give such permission to possess such key.”